1. The Central Government shall appoint the Director of CBI on the recommendation of a three-member committee consisting of the Prime Minister as Chairperson, the Leader of Opposition in the Lok Sabha and the Chief Justice of India or Judge of the Supreme Court nominated by him/her.

2. There shall be a Directorate of prosecution headed by a Director for conducting the prosecution of cases under the Lokpal and Lokayuktas Act, 2013. The Director of Prosecution shall function under the overall supervision and control of the Director of CBI. He/she shall be appointed by the Central Government on the recommendation of the Central Vigilance Commission.

3. The Central Government shall appoint officers of the rank of SP and above in the CBI on the recommendation of a committee consisting of the Central Vigilance Commissioner as Chairperson, the Vigilance Commissioners, the Secretary of the Home Ministry and the Secretary of the Department of Personnel.

Later, the Delhi Special Police Establishment (Amendment) Act, 2014 made a change in the composition of the committee related to the appointment of the Director of CBI. It states that where there is no recognized Leader of Opposition in the Lok Sabha, then the leader of the single largest opposition party in the Lok Sabha would be a member of that committee.

Again, the Delhi Special Police Establishment (Amendment) Act, 2021 provides for the extension of the tenure of the Director of CBI. Under the CVC Act, 2003, he/she has a fixed two-year tenure. But, the amendment allowed the central government to extend his/her tenure from two years to up to five years. However, the extension can be given up to one year at a time and no such extension is possible after the completion of a period of five years in total, including the two-year period of initial appointment. This means that he/she can be given three annual extensions. Further, such extensions may be granted in public interest, on the recommendation of the Committee related to the initial appointment and for the reasons to be recorded in writing.

Functions

The functions of CBI are[3]:

1. Investigating cases of corruption, bribery and misconduct of Central government employees.

2. Investigating cases relating to infringement of fiscal and economic laws, that is, breach of laws concerning export and import control, customs and central excise, income tax, foreign exchange regulations and so on. However, such cases are taken up either in consultation with or at the request of the department concerned.

3. Investigating serious crimes, having national and international ramifications, committed by organised gangs of professional criminals.

4. Coordinating the activities of the anti-corruption agencies and the various state police forces

5. Taking up, on the request of a state government, any case of public importance for investigation.

6. Maintaining crime statistics and disseminating criminal information.

The CBI is a multidisciplinary investigation agency of the Government of India and undertakes investigation of corruption-related cases, economic offences and cases of conventional crime. It normally